

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 4150

By: Hasenbeck

AS INTRODUCED

An Act relating to notaries public; amending 21 O.S. 2021, Section 1524, which relates to fraudulent acts by a notary public; increasing penalties for certain unlawful acts; amending 49 O.S. 2021, Section 113, as amended by Section 2, Chapter 226, O.S.L. 2024 (49 O.S. Supp. 2024, Section 113), which relates to the Uniform Law on Notarial Acts; increasing penalties for certain unlawful acts; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 21 O.S. 2021, Section 1524, is amended to read as follows:

Section 1524. A. No person in this state shall hold himself or herself out as a notary public, attach his or her signature as a notary public, use a notary public seal, or perform any notarial act unless ~~he~~ the person is authorized pursuant to the provisions of Section 114 of Title 49 of the Oklahoma Statutes to perform such acts.

B. Any person convicted of knowingly and willfully violating any of the provisions of this section shall, upon conviction, be

1 guilty of a misdemeanor punishable by a fine of Two Thousand Five
2 Hundred Dollars (\$2,500.00) and imprisonment in the county jail for
3 a term of not less than ninety (90) days.

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4 SECTION 2. AMENDATORY 49 O.S. 2021, Section 113, as
5 amended by Section 2, Chapter 226, O.S.L. 2024 (49 O.S. Supp. 2024,
6 Section 113), is amended to read as follows:

7 Section 113. A. In taking an acknowledgment, the notarial
8 officer must determine, either from personal knowledge or from
9 satisfactory evidence, that the person appearing before the officer
10 and making the acknowledgment is the person whose true signature is
11 on the instrument.

12 B. In taking a verification upon oath or affirmation, the
13 notarial officer must determine, either from personal knowledge or
14 from satisfactory evidence, that the person appearing before the
15 officer and making the verification is the person whose true
16 signature is on the statement verified.

17 C. In witnessing or attesting a signature the notarial officer
18 must determine, either from personal knowledge or from satisfactory
19 evidence, that the signature is that of the person appearing before
20 the officer and named therein.

21 D. In certifying or attesting a copy of a document or other
22 item, the notarial officer must determine that the proffered copy is
23 a full, true, and accurate transcription or reproduction of that
24 which was copied. In the case of official records, only the

custodian of the official records may issue an official certified copy.

E. In making or noting a protest of a negotiable instrument the notarial officer must determine the matters set forth in Section 3-509 of the Uniform Commercial Code.

F. A notarial officer has satisfactory evidence that a person is the person whose true signature is on a document if that person is personally known to the notarial officer, is identified upon the oath or affirmation of a credible witness personally known to the notarial officer or is identified on the basis of identification documents.

G. A notarial officer who performs a notarial act pursuant to this section without first making in good faith the required determination of the identity of the person appearing before the notary shall be guilty of a misdemeanor and upon conviction be subject to a fine ~~not to exceed One Thousand Dollars (\$1,000.00), to~~ of Two Thousand Five Hundred Dollars (\$2,500.00) and imprisonment in the county jail for a term of ~~not to exceed ten (10) days, or both~~ such fine and imprisonment less than ninety (90) days.

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SECTION 3. This act shall become effective November 1, 2026.

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